

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 10  
JUDICIAL OFFICER: JULIA CAMPINS  
HEARING DATE: 09/03/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. DO NOT INCLUDE ARGUMENT IN THIS EMAIL – LIST THE TOPICS ONLY.** Dept. 10's email address is: [dept10@contracosta.courts.ca.gov](mailto:dept10@contracosta.courts.ca.gov). Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

**Submission of Orders After Hearing in Department 10 Cases**

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

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| <b>Courtroom Clerk's Calendar</b> |
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| <p>1.     <b>8:31 AM</b>                   <b>CASE NUMBER: C23-02357</b><br/><b>CASE NAME: LISA ROSS VS. CHENETTE CARTER</b><br/><b>*FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTION</b><br/><b>FILED BY:</b><br/><b><u>*TENTATIVE RULING:*</u></b></p> |
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If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to February 23, 2027, at 8:30 am in Department 10.

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| <p>2.     <b>9:00 AM</b>                   <b>CASE NUMBER: C25-03832</b><br/><b>CASE NAME: JOYCE ESTEY VS. ALBERTO MALDONADO</b><br/><b>*FURTHER CASE MANAGEMENT CONFERENCE</b><br/><b>FILED BY:</b><br/><b><u>*TENTATIVE RULING:*</u></b></p> |
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CMC continued to November 2, 2026, at 8:30 a.m. Parties to file informative statements no later than 15 calendar days in advance.

**3. 10:00 AM CASE NUMBER: MSC21-02258**

**CASE NAME: THOMAS VS. ECKERT**

**ISSUE CONFERENCE**

**FILED BY:**

**\*TENTATIVE RULING:\***

As between Plaintiff Thomas and Defendant Eckert, parties to appear.

### **Law & Motion**

**4. 9:00 AM CASE NUMBER: C23-01524**

**CASE NAME: DENNIS BULLARD VS. APTIVE ENVIRONMENTAL, LLC**

**\*HEARING ON MOTION IN RE: FINAL APPROVAL OF SETTLEMENT**

**FILED BY:**

**\*TENTATIVE RULING:\***

Plaintiffs Dennis Bullard and Kory Thornton move for final approval of their class action and PAGA settlement with defendant Aptive Environmental, LLC. The Court granted preliminary approval on April 9, 2026.

#### **A. Background and Settlement Terms**

The original complaint was filed by Plaintiff Bullard on June 21, 2023, in Contra Costa County, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Coordination Plaintiff Kory Thornton filed a similar complaint in Sacramento County. Coordination procedures began in December 2024. A Second Amended Complaint with both plaintiffs together was filed on August 3, 2026, following the grant of preliminary approval.

The settlement would create a gross settlement fund of \$3,750,000. The class representative payment to plaintiff would be \$10,000. Counsel's attorney's fees would be \$1,312,500 (35% of the settlement). Litigation costs are \$25,675.54. The settlement administrator (Phoenix) would cap its costs at \$21,500. PAGA penalties would be \$200,000, resulting in a payment of \$175,000 to the LWDA. The fund is non-reversionary. The net settlement amount for the class would therefore be \$2,170,324.46, resulting in an average payment of \$705.06 to participating class members.

The proposed settlement would certify a class of all current and former non-exempt employees of Aptive employed within the State of California from June 21, 2019, to October 1, 2025. (Settlement, Par. 1.5, 1.12.) The class is estimated at 3,068 members, although three have since opted out.

The settlement contains release language covering any claims "all claims . . . or causes of action . . . arising out of the claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Actions and ascertained in the course of the Actions." (Settlement,

Par. 5.2.)

Informal discovery was undertaken prior to mediation. The matter settled after extensive arms-length negotiations, with included a mediation session with an experienced mediator.

Looking back at the preliminary approval documentation, Counsel estimated the maximum PAGA exposure at \$2,935,200. The class claims had a maximum exposure of approximately \$21,343,307.98. There were risks for both of these claims, including the presence of arbitration agreements, recordation issues, general proof issues relating to off-the-clock and rest and meal break claims, and inherent risk. Counsel reported a realistic damages analysis after risk analysis of \$3,466,039.46.

The LWDA was notified of the settlement.

Since the Court granted preliminary approval, notice was successfully sent to all 3,068 class members. No objections have been received. Three individuals requested to opt out of the class action.

### **B. Legal Standards**

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

### **C. Attorney fees, costs, and representative payment**

Plaintiffs seek 35% of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a

lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 1,116.7 hours to date, at blended rates of \$650 and \$850 per hour. This results in a lodestar of \$892,450, yielding an implied multiplier of 1.47. All counsel are experienced, and the blended hourly rates are reasonable. The number of hours expended is substantial for a case that had no discovery, but the court does note that there were initially two actions, so there may have been an initial duplication of work. Moreover, there was quite a bit of motion practice in 2024, including an appeal that was pending at the time of settlement.

The Court agrees that the lodestar cross check “does not override the trial court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, the hours expended here were substantial. Another consideration is the result obtained. Counsel characterizes it as an “outstanding” result, but does not give comparisons. The issue is whether there is anything about this case that justifies a higher than usual fee. The court is not aware of anything in particular about this case that was exceptionally complex, aside from what was discussed above. Counsel have conducted calculations that demonstrate reasonable damages expectations slightly below the recovery (before fees). Overall, while the Court does not believe that a 35% contingency fee is appropriate in most cases that settle prior to discovery and dispositive motions, after consideration of all of the factors before it, the Court will approve that fee here.

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$10,000, Mr. Bullard attests that he participated in the litigation, took the risk of liability for costs, and that his participation could hurt his chances of being hired by other employers. He estimates his time spent at 40 to 45 hours. He also provided a general release, although he does not indicate that he had any other claims with value. Mr. Thornton attests similarly, although he does not estimate his hours spent on this litigation. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the Court approves payments of \$7,500 each. The remainder reverts to the class.

#### **D. Discussion and Conclusion**

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in representative payments as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

**5. 9:00 AM CASE NUMBER: C23-02357**  
**CASE NAME: LISA ROSS VS. CHENETTE CARTER**  
**\*HEARING ON MOTION IN RE: 2ND AMENDED COMPLAINT**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Before the Court is Plaintiff Lisa Ross' Motion for Leave to File Second Amended Complaint ("Motion").

#### **Procedural Background**

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023.

On February 10, 2026, Defendant Charlie Ross filed a Motion for Summary Judgment. On February 18, 2026, Plaintiff filed an ex parte application for leave to file a Second Amended Complaint ("SAC"). The Court **denied** the ex parte application on February 19. The Order, entered on February 20, stated: "Plaintiff may request leave to file S.A.C. as part of opposition to defendant's motion for summary judgment set for hearing on 3/12/26."

Plaintiff filed her Opposition to Defendant's MSJ on March 10, 2026. In her Opposition, Plaintiff argues that she should be permitted to file a Second Amended Complaint.

No trial date has been set for this matter. A Case Management Conference is scheduled to occur on the same date as the hearing on this motion.

#### **Standard**

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable prejudice to the opposing party'... [Citation.]" (*Ibid.*)

"[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) "Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any

prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Ibid.* quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

### **Initial Consideration**

#### **Page Numbers**

“Each page must be numbered consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page.” (Cal. R. Ct. 2.109.) In addition, the footer of the document “must contain the title of the paper (examples: ‘Complaint,’ ‘XYZ Corp.’s Motion for Summary Judgment’) or some clear and concise abbreviation.” (Cal. R. Ct. 2.110.)

Defendant’s Opposition fails to include page numbers anywhere and there is no footer with any information. Counsel is reminded to comply with the Rules of Court going forward.

When the Court references the Motion papers it begins numbering on the page where the Introduction starts.

### **Analysis**

Defendant argues that Plaintiff has already amended once and “has not corrected the fundamental deficiencies in her ownership allegations.” (Opp. at 3:15-16.) Defendant did not demur or move to strike any allegations in the FAC, and there has been no ruling that any of the allegations contained therein were deficient. As such, it is unclear what Defendant means by the above argument.

Defendant also contends that since the “proposed amendment would not survive a dispositive challenge on this issue [i.e. ownership of the property], leave to amend should be denied as futile.” (Opp. at 4:8-9.) It is true that certain situations would call for denial of leave to amend, such as when the “insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81.)

Defendant, however, presents no legal arguments or citations supporting her position. Even if such authority was presented, “the preferable practice would be to permit the amendment and allow the parties to test the legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

With respect to prejudice, Defendant argues that additional responsive pleadings, discovery, and motion practice will result, and that there will be a delay in resolution of the case, along with increased litigation expenses. (Opp. at 5:1-9.) To begin with, Defendant’s arguments in their

Opposition do not constitute evidence. “Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

Defendant presents no evidence that shows how a delay in the case might impact him, nor indicating if or how drastic an increase in litigation expenses will occur if leave to amend is granted. While it is true that granting leave to amend will require additional responsive pleadings, and possibly more discovery and motion practice – that alone is insufficient to deny a party an opportunity to amend. “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice.

### **Conclusion**

Based on the above, Plaintiff’s motion for leave to file the Second Amended Complaint is **granted**. Plaintiff shall file the Second Amended Complaint within 10 days of notice of entry of the order on this motion.

**6. 9:00 AM CASE NUMBER: C25-01475**  
**CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ**  
**\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR AUDREY WELSCH**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

The Court was awaiting further information, which has not yet been filed. Parties to appear.

**7. 9:00 AM CASE NUMBER: C25-02864**  
**CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC**  
**\*HEARING ON MOTION IN RE: STAY PROCEEDINGS**  
**FILED BY: PBF ENERGY WESTERN REGION LLC**  
**\*TENTATIVE RULING:\***

The Motion was withdrawn on August 25, 2026. The Court confirms the further case management conference on March 2, 2027, at 8:30 a.m. in Department 10.

**8. 9:00 AM CASE NUMBER: C25-03006**  
**CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: JOHN MUIR HEALTH**  
**\*TENTATIVE RULING:\***

Before the Court is Defendant John Muir Health’s Demurrer. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed

away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

**9. 9:00 AM CASE NUMBER: C25-03006**  
**CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD**  
**\*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**  
**FILED BY: JOHN MUIR HEALTH**  
**\*TENTATIVE RULING:\***

Before the Court is Defendant John Muir Health's Motion to Strike. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

**10. 9:00 AM CASE NUMBER: C25-03832**  
**CASE NAME: JOYCE ESTEY VS. ALBERTO MALDONADO**  
**\*MOTION/PETITION TO COMPEL ARBITRATION**  
**FILED BY: MALDONADO, ALBERTO**  
**\*TENTATIVE RULING:\***

Off-calendar; motion withdrawn by moving parties on August 25, 2026.

**11. 9:00 AM CASE NUMBER: C26-00575**  
**CASE NAME: KEMI RANDOLF-GODDARD VS. SELECT PORTFOLIO SERVICING, INC**  
**HEARING ON DEMURRER TO COMPLAINT**  
**FILED BY: SELECT PORTFOLIO SERVICING, INC**  
**\*TENTATIVE RULING:\***

Defendant Select Portfolio Servicing, Inc. ("Defendant") brings this demurrer to the complaint ("Complaint") of plaintiff Kemi Rosalia Randolph-Goddard ("Plaintiff"). Defendant challenges the entire Complaint and each of the four individual causes of action.

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to the first, second, and fourth causes of action, and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

**Meet and Confer**

The meet and confer requirement has been satisfied. (Gino D. Palmieri Decl., ¶¶ 3-4; Code Civ. Proc.,



§ 430.41, subd. (a)(3)(A).)

### **Legal Standard for Demurrer**

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

In ruling upon demurrers, courts treat as being true “not only the complaint’s material factual allegations, but also facts that may be implied or inferred from those expressly alleged.” (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) “However, leave to amend should not be granted where, in all probability, amendment would be futile.” (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

### **Background: Facts Alleged in Complaint**

Plaintiff filed this action on February 18, 2026. (Complaint, p. 1.) Plaintiff alleges that she is the owner of property located at 4612 Palomino Way, Antioch, California (the “Property”). (*Id.* at ¶¶ 1–2.) Plaintiff asserts that in 2004 she obtained a first position loan for approximately \$504,000 and a second position loan for approximately \$126,000. (*Id.* at ¶ 13.) The first position loan for \$504,000 (the “Loan”) is the subject of this lawsuit. (*Ibid.*) Plaintiff made payments on the Loan until 2022, when she was laid off and fell behind on mortgage payments—she was never able to catch up on arrears. (*Id.* at ¶¶ 14, 15.) She thereafter submitted multiple Requests for Mortgage Assistance (“RMAs”) between 2023 and 2025. (*Id.* at ¶¶ 16–27.)

Plaintiff further alleges that she was never issued a final decision on any of her applications, that Defendant repeatedly changed her single point of contact (“SPOC”), failed to provide consistent information, did not supply requested loan accountings, issued deficient or contradictory communications regarding RMA eligibility, and improperly proceeded with foreclosure. (Complaint, ¶¶ 17–31.) Plaintiff filed for bankruptcy after May 2025 in an attempt to save her home. (*Id.* at ¶¶ 25.) At some point between May 2025 and July 25, 2025, Plaintiff had a stroke and was in a coma, which caused her to miss a bankruptcy deadline, that resulted in dismissal. (*Id.* at ¶ 25.) On August 26, 2025, she filed for bankruptcy again but the Property was sold on August 27, 2025. (*Id.* at ¶ 30.)

Plaintiff's first cause of action alleges a violation of Civil Code section 2923.7, based on Defendant's failure to provide a knowledgeable single point of contact and failure to offer accurate, timely information regarding Plaintiff's RMAs. (Complaint, ¶¶ 32–54.)

Plaintiff's second cause of action alleges a violation of Civil Code section 2923.6, asserting that Defendant did not provide required written denial information, including reasons for denial, appeal instructions, investor-related explanations, or alternative foreclosure-prevention options, and that Defendant foreclosed within the statutory 30-day appeal period. (*Id.* at ¶¶ 55–70.)

Plaintiff's third cause of action alleges a violation of Civil Code section 2923.55, claiming that Defendant recorded a Notice of Default on May 10, 2024, without first contacting Plaintiff in person or by telephone as required. (*Id.* at ¶¶ 71–75.)

Plaintiff's fourth cause of action alleges a violation of Business and Professions Code section 17200 et seq., asserting that Defendant's conduct described above constitutes unlawful, unfair, or fraudulent business practices, resulting in various injuries including loss of the property, lost income, fees, and other damages. (*Id.* at ¶¶ 76–81.)

Plaintiff seeks a jury trial, injunctive relief unwinding the August 27, 2025 sale, reinstatement of title, damages, disgorgement, attorneys' fees, costs, and any further relief the Court deems proper. (*Id.* at pp. 11-12.)

#### **Requests for Judicial Notice**

##### RJN ISO Demurrer

Defendant requests that the Court take judicial notice of a: (1) Deed of Trust recorded August 31, 2004; (2) Assignment of Deed of Trust recorded November 24, 2009; (3) Notice of Default and Election to Sell Under Deed of Trust recorded May 10, 2024; (4) Notice of Trustee's Sale recorded August 14, 2024; (5) Corporate Assignment of Deed of Trust recorded November 5, 2024; (6) Trustee's Deed Upon Sale recorded September 18, 2025; (7) Chapter 7 Bankruptcy Docket and Petition filed on May 27, 2025; (8) Chapter 7 Bankruptcy Docket and Petition filed on August 26, 2025; and (9) Chapter 7 Bankruptcy Docket and Petition filed on October 8, 2025.

##### RJN ISO Opposition

Plaintiff requests that the Court take judicial notice of an Order and Notice of Dismissal for Failure to Comply, dated October 24, 2025, from the US Bankruptcy Court of Northern California.

##### RJN Ruling

The Court GRANTS Defendant's requests for judicial notice nos. 1-9 and Plaintiff's request for judicial notice, as to the existence of the documents but not the truth of the matters asserted therein. (Evid. Code, § 452, subds. (c), (d).) "Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are

disputable.” (*Herrera v. Deutsche Bank Nat’l Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

### **Discussion**

#### **Plaintiff’s Claims and Their Relation to her Bankruptcy Estate**

Defendant argues in the moving papers that Plaintiff’s entire Complaint fails to state a claim because Plaintiff did not plead the legal claims giving rise to this suit in her bankruptcy case, and all the claims predated her bankruptcy. Defendant argues that in Chapter 7 Bankruptcy matters, the bankruptcy trustee controls the bankruptcy estate. The trustee is therefore the sole real party in interest with the standing to sue. (Demurrer, p. 7.) Defendant cites *Bostanian v. Liberty Savings Bank, F.S.B.* (1997) 52 Cal.App.4th 1075, 1081, for the proposition that “a Chapter 7 debtor may not prosecute on her own a cause of action belonging to the bankruptcy estate unless the claim has been abandoned by the trustee” (Demurrer, p. 7.) Property of the estate that is not scheduled and not otherwise administered before a case is closed is not abandoned to the debtor at the time of closing, but, rather, remains the property of the estate. (*Id.* at pp. 7-8.) Here, Plaintiff’s bankruptcy petitions did not disclose her claims against Defendant on the schedules and the claims arose prior to the bankruptcy petitions being filed. (*Id.* at p. 8.) Here, Because Plaintiff’s bankruptcies have been dismissed and there is no showing that the instant claims were abandoned, she has no standing to sue.

Plaintiff argues in the opposition that she does not lack standing because her bankruptcy was dismissed, not administered and closed. (Opposition, p. 7.) She cites *Circle Star Center Associates, L.P. v. Liberate Technologies* (2007) 147 Cal.App.4th 1203, 1204, for the view that a dismissal undoes the bankruptcy and restores property rights to the position in which they were found at the commencement of the case. (Opposition, p. 8.) In the alternative, Plaintiff requests a continuance so that she can reopen the bankruptcy case to properly disclose the claims to the bankruptcy court. (*Id.* at pp. 8-9.)

On reply, Defendant argues that there is no difference to the result whether the bankruptcy is closed or dismissed, as caselaw makes no distinction citing *In re JZ L.L.C.*, 371 B.R. 412, 418 (B.A.P. 9th Cir. 2007), for the following statement, “property of the estate that is not scheduled and not otherwise administered before a case is closed is not abandoned to the debtor at the time of closing, but rather remains property of the estate—forever.” (Reply, p. 2.) Defendant further argues that the October Bankruptcy was not actually dismissed because the docket of the October bankruptcy shows that the last and final entry on the docket was “Bankruptcy Case Closed.” (*Id.* at p. 3.)

Here, the Court finds that Plaintiff has standing to currently pursue her claims because the October 2025 bankruptcy was dismissed.

A dismissal, unless otherwise ordered, “revests the property of the estate in the entity in which such property was vested immediately before the commencement of the case under this title.” (11 U.S.C. § 349(b)(3).) This provision “obviously contemplates that on dismissal a bankrupt is reinvested with the estate, subject to all encumbrances which existed prior to the bankruptcy. After an order of dismissal, the debtor’s debts and property are subject to the general laws, unaffected

by bankruptcy concepts.” (*In re Income Property Builders, Inc.* (9th Cir. 1982) 699 F.2d 963, 965, fn. omitted, italics added.) “ ‘The basic purpose of the subsection is to undo the bankruptcy case, as far as practicable, and to restore all property rights to the position in which they were found at the commencement of the case.’ ”

(*Circle Star Center Associates, L.P. v. Liberate Technologies* (2007) 147 Cal.App.4th 1203, 1209.)

Defendant’s argument on reply does not provide any authority to show that the dismissal does not revert the property back to Plaintiff, and only cites *In re JZ L.L.C.* (B.A.P. 9th Cir. 2007) 371 B.R. 412, 418, for the statement that “property of the estate that is not scheduled and not otherwise administered **before a case is closed** is not abandoned to the debtor at the time of closing, but rather remains property of the estate—forever.” (Reply, p. 2, emphasis added.) That deals with cases which are closed and does not line up with Plaintiff’s argument in opposition. Defendant’s other argument, that Plaintiff’s October 2025 bankruptcy proceeded and was eventually closed on December 2, 2025 (Reply, p. 3), is not supported by their exhibits. Defendant cites to Exhibit 9 of its RJN, for this assertion, yet Exhibit 9 of Defendant’s RJN does not appear to assert what Plaintiff claims, as it appears to this Court that rather than stating the case was closed on December 2, 2025, it shows that the October 2025 bankruptcy case was dismissed on October 24, 2025, which is in line with the request for judicial notice made by Plaintiff in support of the opposition.

Defendant’s demurrer to the entire complaint based on lack of standing due to bankruptcy is overruled.

#### Civil Code Section 2923.7 Claim

Defendant argues that this claim fails because Plaintiff has admitted being assigned a single point of contact. (Demurrer, pp. 9-10.) Defendant contends that the multiple single points of contact occurred because she filed multiple RMAs. (*Id.* at p. 10.)

Plaintiff argues in opposition that Civil Code § 2923.7(b)(2) requires not just the appointment of a SPOC but additionally requires the SPOC to have access to current information and personnel to timely, accurately, and adequately inform the borrower of the current status of the foreclosure prevention alternative, which was not done here. (Opposition, pp. 10-11; Complaint, ¶¶ 18-20, 36-40.)

Defendant argues on reply that “The Opposition claims that Defendant did not have access to current information regarding the status of the foreclosure prevention alternative. [Citation.]. However, Plaintiff’s allegations are conclusory and uncertain. It is unclear which SPOC for which RMA Plaintiff is unsatisfied with in her Complaint as she fails to describe each alleged RMA (i.e., date it was submitted, affirmation that it was complete, form in which it was submitted) or the name of an assigned SPOC with any sufficient particularity.” (Reply, p. 3.) Defendant contends that the multiple SPOCs were because she submitted multiple RMAs. (*Id.* at p. 4.)

The Court finds that Plaintiff has stated a claim for violation of Civil Code section 2923.7. Plaintiff alleges that “When Plaintiff would call SPS, SPS would direct her to speak to her single point of contact, but her single point of contact changed so frequently that she was unable to get consistent

information regarding the Loan Modification Applications she submitted. Furthermore, Plaintiff submitted numerous requests for an accounting of the Loan so that she could verify the Loan's balance and arrears. None were ever provided." (Complaint, ¶¶ 18-19.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.) Here, the Court finds Plaintiff's allegations sufficient for the pleading stage and overrules Defendant's demurrer to Plaintiff's first cause of action for violation of Civil Code section 2923.7.

#### Civil Code Section 2923.6 Claim

Defendant argues in the moving papers that Plaintiff did not state a claim under Civil Code section 2923.6 because she submitted multiple RMAs, which subsection (g) addresses, and provides that to combat borrowers who submit multiple RMAs to delay the foreclosure process the servicer is not required to evaluate applications from borrowers who have already been fairly evaluated absent a material change in the borrower's financial circumstances. (Demurrer, p. 10.) Defendant asserts Plaintiff's allegations regarding a violation of subsection (f), which requires certain information to be provided following the denial of a first lien loan modification, are conclusory and rather than attach the full denial letter, she only quotes an excerpt. (*Id.* at pp. 10-11.) Defendant further argues that it was not required to wait 30 days prior to foreclosing because "Plaintiff's admitted delay tactics waive any obligation by Defendant to wait 30 days after the July RMA" and Plaintiff does not state she submitted an appeal or that the RMA denials were in error.

Plaintiff argues in the opposition that it is irrelevant that she submitted multiple RMAs, and that she does not deny that, but that she received no response to any of them prior to May 2025 and was eventually told that they did not have a record of those applications. (Opposition, p. 13.) She further argues that she submitted an RMA on or around July 25, 2025, and that for Defendant to proceed with the foreclosure on August 27, 2025, is a clear and evident violation of Civil Code § 2923.6, subdivision (d).

On reply, Defendant argues that Plaintiff received a denial letter that was sufficient because the only information required to be in a denial letters is the amount of time a borrower has to appeal the denial. (Reply, p. 4.) Further, Defendant argues they did not need to wait to foreclose until 30 days from the denial of the July 25, 2025 RMA, because they had already reviewed and denied Plaintiff's April 30, 2025 RMA on May 7, 2025, and the Complaint is devoid of any allegations of a change in circumstance. (*Id.* at pp. 4-5.)

Here, the Court finds that Plaintiff has stated a claim under Civil Code section 2923.6, because the May 6, 2025 denial is alleged to have not identified the reason for the denial, in violation of this section. (Complaint, ¶¶ 60-61.) Defendant argues that the denial only needs to identify the appeal time, but it also at the very least must identify "the reasons for denial" in addition to the amount of time to appeal. (Civ. Code, § 2923.6, subd. (f).) Further, while subdivision (g) provides that a mortgage servicer is not obligated to evaluate applications from borrowers who were already afforded a fair opportunity, this does not mean that if they ignore the law and evaluate an application anyways, that they can then foreclose within 30 days of a denial. Because Plaintiff alleges Defendant sent her a letter after her July 25, 2025 RMA stating she would receive a final decision "indicating whether she was approved for mortgage assistance or, if she was ineligible, the reason for her ineligibility" (Complaint, ¶¶ 63-64), Defendant waived its option to not evaluate the July 25, 2025

RMA, and was still required to wait 30 days after the denial that came in on July 29, 2025, which it did not because it sold the Property on August 26, 2025. (Complaint, ¶ 65.)

The Court overrules Defendant's demurrer to Plaintiff's second cause of action for violation of Civil Code section 2923.6.

#### Civil Code Section 2923.55 Claim

Defendant argues in the moving papers that Plaintiff has not pled a claim under Civil Code section 2923.55, which requires a mortgage servicer to contact the borrower in person or by telephone in order to assess the borrower's financial situation, and submit a declaration with the recorded notice of default attesting to the meeting or due diligence. (Demurrer, pp. 11-12; Civil Code, § 2923.55, subd. (b)(2)(A).) Defendant argues that all that is required is the declaration to be included with the recorded notice of default, which was done. (Demurrer, pp. 11-12; Complaint, ¶ 73; RJN ISO Demurrer, Exh. 3.) Defendant further argues that even if the call did not occur on that date, Plaintiff alleges multiple phone calls with Defendant's representatives in 2023, and the Notice of Default was recorded on May 10, 2024, which was more than the required 30 days after any of those phone calls.

Plaintiff argues in the opposition that even though Plaintiff spoke to the Defendant about her financial circumstances prior to the Notice of Default being recorded, the Notice of Default has an inaccurate date because Plaintiff did not speak to Defendant on that date. (Opposition, p. 14.) Plaintiff argues that had Defendant complied with this code section that "Plaintiff might have been able to obtain answers regarding the status of her loss mitigation applications." (*Ibid.*)

On reply, defendant argues that asserting that a declaration under this section contained an inaccuracy does not state a claim under this section for failing to contact the borrower to assess the borrower's financial situation and explore options for the borrower to avoid foreclosure." (Reply, p. 5.)

The Court agrees with Defendant that an inaccurate date identified on the declaration attached to the recorded notice of default, when combined with allegations that Plaintiff and Defendant had been in contact and Plaintiff even filed at least one RMA in 2023, months prior to the May 10, 2024 notice of default being recorded, does not state a claim under this section. (Complaint, ¶¶ 17-18 [alleging at least one loan medication application being submitted in 2023, and contacts with Defendant].)

The Court sustains Defendant's demurrer to Plaintiff's third cause of action for violation of Civil Code section 2923.55.

#### Business & Professions Code Section 17200 et seq.

Defendant argues that "Under its unlawful prong, the unfair competition law ("UCL") (Bus. & Prof. Code, § 17200 et seq.) borrows violations of other laws and makes those unlawful practices actionable under the UCL." (Demurrer, p. 12.) "Plaintiff has failed to sufficiently plead any violations of other laws which this cause of action can be based off. For this reason, Plaintiff's Fourth Cause of Action rises and falls with the other Causes of Action." (*Ibid.*)

Plaintiff argues in the opposition that because her other claims are valid, so is her Section 17200

claim. (Opposition, pp. 14-15.) On reply, Defendant argues that “Plaintiff’s Fourth Cause of Action rises and falls with the other Causes of Action.” (Reply, p. 5.)

Because the Court has overruled the demurrer to the first and second causes of action, this UCL claim is sufficiently pled.

**Ruling**

Based on the analysis above, the Court **OVERRULES** Defendant’s demurrer to the first, second and fourth causes of action and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

**12. 9:00 AM CASE NUMBER: C26-02214**  
**CASE NAME: BOBBY JOHN VS. ANAND MUNI**  
**MOTION TO BE RELIEVED AS COUNSEL RE: MEGAN T. BURNS**  
**FILED BY: JOHN, MARIA**  
**\*TENTATIVE RULING:\***

The Court requires supplemental information filed under seal to be reviewed in camera.

**13. 9:00 AM CASE NUMBER: C26-02214**  
**CASE NAME: BOBBY JOHN VS. ANAND MUNI**  
**MOTION TO BE RELIEVED AS COUNSEL RE: MEGAN T. BURNS**  
**FILED BY: JOHN, TONY**  
**\*TENTATIVE RULING:\***

The Court requires supplemental information filed under seal to be reviewed in camera.

**14. 9:00 AM CASE NUMBER: C26-02214**  
**CASE NAME: BOBBY JOHN VS. ANAND MUNI**  
**\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**  
**FILED BY: JOHN, BOBBY**  
**\*TENTATIVE RULING:\***

The Court requires supplemental information filed under seal to be reviewed in camera.

**15. 9:00 AM CASE NUMBER: MSC21-02258**  
**CASE NAME: THOMAS VS. ECKERT**  
**\*HEARING ON MOTION IN RE: BIFURCATE TRIAL**  
**FILED BY: ECKERT, DAVID**  
**\*TENTATIVE RULING:\***

The motion to bifurcate under Code of Civil Procedure § 598, filed by defendant David Eckert, is **denied**. The Court does not find that bifurcation would significantly advance efficiency or fairness, as discussed below.

### **Background**

This is a dispute between plaintiff Adrienne Thomas, the owner of a condominium, and several defendants associated with the management of the condominium complex. Among other claims, plaintiff alleges that defendants were negligent in maintaining and repairing HOA property as required by the CC&Rs, causing her financial loss through personal injury and property damage.

The operative Second Amended Complaint ("SAC") names three defendants that have appeared in the case: (1) Baywoods Homeowners Association, (2) Homeowners Management Company, LLC, and (3) David Eckert. Paragraph seven of the SAC alleges, "[a]t all relevant times Plaintiff is certain of the defendants, including the Doe defendants, were acting as the partners, agents, servants, employees, alter egos, successors or predecessors in interest, or contractors of others of the defendants, and were acting within the course and scope of such relationship, with the knowledge, express or implied, of each such other named defendant."

The SAC sets forth five causes of action (breach of contract, negligence, negligence per se, gross negligence, and intentional infliction of emotional distress), each of which names "Defendant's - David Eckert, et al and DOES 1 through 500."

Eckert now moves the Court for an order to bifurcate this matter so that the "threshold" issue of his individual liability may be tried separately from, and prior to, any HOA liability or damages. (Memorandum of Points and Authorities in Support of Motion, 2:6-8.) Plaintiff opposes the motion, arguing there are no issues of alter ego to be tried because such theory was not pleaded, she does not intend to offer such proof at trial, no efficiency would be gained by bifurcating, and because bifurcation would substitute the Court in the role of the jury.

The Court notes that certain of this analysis may be moot, given the notice received by the Court on August 31, 2026 that Defendants Baywoods Homeowners Association and Homeowners Management Co. have reached a settlement with Plaintiff Thomas. Given Plaintiff's allegations as further explained below, the Court will nevertheless proceed with its analysis.

### **Standard**

Code of Civil Procedure § 598 permits a court to order "that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case" if "the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby." The objective of Code of Civil Procedure § 598, allowing trial of issue of liability before other issues, is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff. (*Trickey v. Superior Court* (1967) 252 Cal.App.2d 650, 654.) Code of Civil Procedure § 1048, subdivision (b) similarly provides that the trial court may order a separate trial of any separate issue or number of issues "in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy."

Generally, granting a motion for separate trials is discretionary. (*Regents of University of California v. Sheily* (2004) 122 Cal.App.4th 824, 833; *Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.*



(2002) 100 Cal.App.4th 193, 205; *Finley v. Superior Court* (2000) 80 Cal.App.4th 1152, 1163.)

## Discussion

Eckert argues bifurcation would avoid jury prejudice and serve judicial economy. The basis for his position is that, if he prevails in the initial phase, he will not be part of what is sure to be “a lengthy, complex, and highly technical jury trial regarding corporate negligence and environmental damages.” (Memorandum of Points and Authorities, 4:13-16.)

In opposition to the motion, plaintiff argues that, while Eckert, as the director and officer of the HOA, was often the actor through which the HOA caused plaintiff’s alleged injury, her allegations against Eckert are not solely based on alter-ego liability. Specifically, plaintiff alleges, on information and belief, that Eckert “intentionally, and willfully, avoided the necessary repairs in an attempt to make Plaintiff uncomfortable in her own property and forcing her to sale [sic] the property.”

While the Court agrees with the motion’s contention that proving alter ego would require a showing of factors such as “unity of interest, commingling of funds, and failure to observe corporate formalities” (Reply, 3:16-17), none of these have been pleaded in the SAC and there is no indication that plaintiff intends to show these factors.

All five of the causes of action here mention David Eckert by name, describing acts for which plaintiff asserts Eckert bears personal responsibility. The SAC alleges a cause of action for breach and several tort causes of action. These are not equitable in nature and the SAC seeks no equitable remedy. Eckert never challenged the Second Amended Complaint by way of demurrer, motion to strike, motion for judgment on the pleadings, or summary judgment / adjudication. Accordingly, there are multiple causes of action alleged directly against Eckert as an individual defendant, independent of whether or not he would be liable on an alter-ego theory. Eckert has not shown, based on the evidence, that plaintiff intends to even pursue an alter ego theory, which plaintiff expressly denies.

It is defendant’s burden to show bifurcation would further convenience, fairness, and judicial economy. The evidence of such showing is primarily by way of legal conclusions in counsel’s declaration. Eckert fails to address the argument that he is a direct defendant under the SAC, not simply liable under an alter-ego theory. He also fails to address the statutory requirement for a trial by jury in this type of case under Code of Civil Procedure, § 592.

While relying on Code of Civil Procedure, § 1048 (b), defendant ignores the constraints of that same section. Code of Civil Procedure, § 1048 (b) allows the Court, “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy” to order a separate trial of “any separate issue or of any number of causes of action or issues, *preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.*”

Plaintiff highlights Code of Civil Procedure, § 592 as “statute of this state” which preserves the right of trial by jury in this action, which pleads one cause of action for breach of contract and four causes of action based in tort. Section 592 provides a plaintiff the right to a jury when the action is one for “injuries.” In such a case, “an issue of fact must be tried by a jury, unless a jury trial is waived, or a reference is ordered, as provided in this code.” While also true that the statute allows for the preliminary disposal of issues of law, the only issue identified here—alter ego liability—is not truly at issue by plaintiff’s own concession. The reply fails to address section 592. Accordingly, the Court concludes that bifurcation is not permitted under the relevant statutes and any separate trial of alter ego will not “be conducive to expedition and economy,” as required.

Accordingly, the motion must be denied.<sup>1</sup>

**16. 9:00 AM CASE NUMBER: MSC21-02258**  
**CASE NAME: THOMAS VS. ECKERT**  
**HEARING IN RE: JOINDER IN DEFENDANT DAVID ECKERT'S MOTION TO BIFURCATE TRIAL FILED 8/19/26 BY DEFENDANT BAYWOODS HOMEOWNERS ASSOCIATION AND HOMEOWNERS MANAGEMENT CO.**  
**FILED BY: BAYWOODS HOMEOWNERS ASSOC.**  
**\*TENTATIVE RULING:\***

Off calendar pursuant to moving party's request.

**17. 9:00 AM CASE NUMBER: N25-0867**  
**CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC**  
**\*HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

At this time, through a combination of filings, it is clear that the three claimants: Susan Mechtel, Robert I. Reed, and Rebecca L. Lewis are the only three individuals entitled to the surplus funds. Through the combination of filings, it is also clear that each of these individuals is conceded by the others to be entitled to the surplus funds, and in the same proportion. The Court therefore approves the claim and authorizes distribution to each of these three individuals of one third of the surplus funds in this matter.

**18. 9:00 AM CASE NUMBER: N26-0639**  
**CASE NAME: MILLER STARR REGALIA VS. MOD SUPER FAST PIZZA (CALIFORNIA), LLC**  
**HEARING ON PETITION IN RE: PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD**  
**FILED BY: MILLER STARR REGALIA**  
**\*TENTATIVE RULING:\***

Before the Court is Petitioner Miller Starr Regalia's Petition to Confirm Contractual Arbitration Award against MOD Super Fast Pizza (California), LLC. No opposition has been filed. After a review of the

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<sup>1</sup> As a result of this determination, the Court does not need to address the issues of the 5-year rule and Plaintiff's proposal for case management. As an initial matter, the length of the trial is irrelevant to the deadline for commencing the trial. For the purposes of Code Civil Procedure section 583.310, an action is "brought to trial" if, in a jury case, the jury has been impaneled. (*Hartman v. Santamarina* (1982) 30 Cal.3d 762, 765–767, 765 n.3.) A jury is "impaneled and sworn" when a panel of prospective jurors assembles in a courtroom for voir dire and is sworn to tell the truth. (*Stueve v. Nemer* (2017) 7 Cal.App.5th 746, 750–755.) On the other hand, the Court is surprised that by the obvious impracticability of Plaintiff's proposal, as staff and the Court herself have myriad other obligations that continue throughout a jury trial and make a 9am jury start time impossible.

filings, all requirements of Code of Civil Procedure section 1285 et seq. appear to have been satisfied. The Court therefore **grants** the Petition, confirming the Final Award of \$196,889.40 plus interest.

#### Discovery Law & Motion

**19. 9:01 AM CASE NUMBER: C24-02215**

**CASE NAME: ROBERT VARAO VS. MATTHEW TINDALL**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF DEFENDANT MATTHEW A. TINDALL**

**FILED BY: VARAO, ROBERT E.**

**\*TENTATIVE RULING:\***

Plaintiff Robert Varao seeks to compel the deposition of Defendant Matthew Tindall. The Court received no timely response.

The un rebutted facts show that Tindall has twice failed to appear for a noticed deposition. Although there were disputes about the scheduling of the first deposition, he agreed to appear for the second. Tindall is in violation of Code of Civil Procedure section 2025.280(a). Pursuant to Code of Civil Procedure section 2025.450(a), the Court will order Tindall to appear for deposition within 10 days of this Order.

Varao also seeks sanctions. Code Civ. Pro. § 2025.450(g)(1). He has provided information sufficient to support the imposition of \$5,079.78 in sanctions, against Defendant Tindall, payable to counsel for Varao within 30 days of this order.

**20. 9:01 AM CASE NUMBER: C26-00435**

**CASE NAME: WHITNEY YAN VS. CHARLES LI**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL APPEARANCE AT TESTIMONY**

**FILED BY: LI, CHARLES**

**\*TENTATIVE RULING:\***

Defendant Charles Li seeks to compel Plaintiff Whitney Yan's deposition. Plaintiff Yan argues that the motion be denied because Yan has not refused to be deposed, but cannot be deposed at this time due to illness.

Li's briefing contains substantial information about other individuals and other cases. This documentation is all hearsay and will not be considered on this Motion. While the Court is sensitive to medical issues, Li correctly identifies that Yan's note from his oncologist is unsigned and additionally does not explain why Yan cannot participate in a remote deposition. Nor does the note give a time frame during which Yan is actively in chemotherapy. Yan argues that written discovery could accomplish the same goals. This argument both contradicts Yan's premise that he is *not* refusing to appear for deposition, and ignores that Li is entitled to proceed reasonably through all appropriate forms of discovery in whichever order he deems proper.

In light of all of these issues, the Court will **grant** Li's motion with the following parameters: (1) Yan is entitled to appear for deposition remotely, as long as counsel for Yan is also on camera; (2) Yan is entitled to take frequent breaks or have shortened sessions; and (3) any additional medical restrictions must be specified in a signed note from a doctor. Yan must sit for the first portion of the deposition within 30 days.

**Law & Motion**  
**Add On**

**21. 9:00 AM CASE NUMBER: N25-1239**  
**CASE NAME: ALEXANDER CAINE VS. DOES 1-20, INCLUSIVE.**  
**HEARING IN RE: PETITION FOR WRIT OF MANDATE**  
**FILED BY:**

**\*TENTATIVE RULING:\***

**INTRODUCTION**

Before the Court is Petitioner ALEXANDER CAINE's ("Petitioner") Petition for Writ of Mandate to rescind the Letter of Reprimand he received in October 2024, stemming from the apprehension of a suspect that occurred on March 20, 2023.

Petitioner's sole theory is that the Department failed to comply with Government Code section 3304, subdivision (d)(1), which bars punitive action if the investigation is not completed within one year of the public agency's discovery, by a person authorized to initiate an investigation, of the allegation or misconduct. That argument turns on fact questions: when the agency discovered misconduct and whether a person authorized to initiate an investigation acted with reasonable diligence. (See *Haney v. City of Los Angeles* (2003) 109 Cal.App.4th 1, 8.)

For the following reasons, **Petitioner's Writ of Mandate is granted and the Court orders Respondent to rescind the October 2024 Letter of Reprimand because it is barred by the one-year statute of limitations set out by Government Code section 3304(d)(1).**

**FACTUAL BACKGROUND**

**A. PETITIONER RESPONDS TO AN INCIDENT ON MARCH 20, 2023**

During the time periods relevant to this proceeding, Petitioner Caine was a sworn peace officer employed by Respondent City of Richmond ("City") and its Police Department ("Department"). On March 20, 2023, another Richmond Police Officer was making a vehicle stop of a box truck suspected to be stolen. (Resp. Exh. 1, Caine TR at pp. 43:15-46:9.) The suspect, Alexander Medrano, collided with the officer's patrol vehicle, injuring the officer, and attempted to flee on foot. (Id. at 43:15-46:23.) The

officer discharged his taser to stop Medrano but was unsuccessful. (Opening Brief (“Op. Br.”) at p. 3.) Medrano fled into a residential neighborhood, and the officer radioed for assistance. (Op. Br. at p. 3; Resp. Exh. 1, Caine TR at pp. 43:15-46:9; 62:13-64:18.)

Petitioner (at the time a Police Officer) responded to the scene along with multiple other Richmond officers. (Op. Br. at p. 3.) Sergeant James Moody formed a search team with Officer Jason Mallari, Officer Jameiz Terrell, and Petitioner. (Op. Br. at p. 3.) Officer Mallari, who was assigned as a canine handler, responded with a canine unit. (Op. Br. at p. 3.) While searching, Officer Terrell observed shoes sticking out of the bushes in front of one of the townhomes. (Op. Br. at p. 3.) The search team surrounded the bush, with Petitioner taking an elevated position on a staircase overlooking the bushes, from where he was able to observe Medrano partially concealed in the bushes below him. (Op. Br. at p. 3.; Petitioner’s Exhibit (“Pet. Exh.”) C at 22:44:42-22:45:06; Resp. Exh. 1, Caine TR at pp. 62:13-64:18). Officer Mallari instructed the canine to search. (Op. Br. at p. 3.; P. Exh. C at 22:44:42-22:45:18.)

At some point Caine removed or manipulated a hand-held flashlight and threw it toward the area where Medrano was concealed. (Pet. Exh. C at 22:45:06-22:45:20; Resp. Exh. 1, Caine TR at pp. 51:6-10.) Caine admits he threw the flashlight, but he continues to deny that the flashlight actually struck Medrano (a factual dispute not at issue). (Id. at pp. 52:1-11.) He admits he had the best visibility of the hidden Medrano from his vantage point. (Id. at 64:20-25).

The act of throwing the flashlight was not clearly captured by the body-worn cameras (“BWC”) worn by the officers on the scene. As is evident from the footage, all responding officers were on ground level and focused on the canine and a concealed suspect – not Caine, who was standing on an elevated staircase above where Medrano was hiding. (Pet. Exh. C).

Footage from Petitioner’s own BWC shows him moving his duty weapon aside, pausing for a few seconds, then making a quick jerking motion, but Petitioner’s hand is never visible in the footage. (Pet. Exh. C at 22:45:06-22:45:20.) None of the footage captured at the scene of Medrano’s apprehension shows Petitioner’s hand throwing the flashlight, shows the flashlight in the air, or where the flashlight landed. (Resp. Exh.1, Caine TR pp. 92:17-94:21.)

Shortly after Petitioner threw the flashlight, the suspect yelled “Ow!” and “What the fuck, man. What the hell is this for, I’m just sleeping right here, bro. What the fuck.” (Pet. Exh. C at 22:45:20-22:45:28.) BWC footage shows Medrano holding a flashlight. (Pet. Exh. B at p. 32; Pet. Exh. C at 22:45:25-28.) Petitioner ordered Medrano to place his hands up; Medrano complied, and seconds later Officer Mallari’s canine went behind the bush and made contact, biting Medrano on the arm. (Pet. Exh. C at 22:45:28-22:45:34.) Medrano was ordered to crawl out and taken into custody. (Pet. Ex. B at p. 33; Resp. Exh. 1, Caine TR at p. 64:14-18.)

## **B. POST-INCIDENT STATEMENTS**

Due to injuries from the canine, Medrano was transported by ambulance to the hospital. (Moody Decl., ¶ 7.) While en route, Medrano told Sergeant Moody words to the effect of “you hit me in the head.” (Ibid.) Sergeant Moody understood the statement as an accusation that he personally had struck Medrano. (Ibid.) Medrano did not identify Caine, did not mention a flashlight, did not say that an officer on the staircase struck him, and did not state that an object had been thrown. (Ibid.) Because Moody knew he had not struck Medrano in the head, he did not understand the statement as a report that another officer used force. (Id. ¶ 8; Pet. Exh. B at p. 17.)

Officer Mallari conducted a brief interview of Medrano at the hospital. (Pet. Exh. G.) At the end of the interview, after Mallari had already begun walking away, Medrano claimed to have been sleeping and said, “all I know was I got woken up by a flashlight hitting me and then you popped up.” (P. Exh. G at 23:27:11-15.) Officer Mallari did not hear this statement, and he did not report it. (Pet. Exh. B at p. 19, Pet. Ex. E.). Importantly, Mallari was not a supervisor with the Department. (Resp. Exh. 1, Caine TR at p. 95:2-16.) Caine concedes that Mallari never reported that Medrano made an accusation that someone hit him in the head with a flashlight. (Id. at pp. 127:24-128:3, 129:23-130:1.) Also at the hospital, Officer Moreno photographed Medrano's injuries, including a minor injury to Medrano's head. (Pet. Exh. B, p. 33.)

The following day, Officer Brian Hoffman conducted a follow-up interview with Medrano at the Martinez Detention Facility. Officer Hoffman reviewed police reports, body-worn camera video, photographs, and Mallari's interview of Medrano. Officer Hoffman reported that, in the interview, Medrano stated “he was sleeping by a bush [and] was awoken when a flashlight landed by his face and a dog was ‘let’ on him.” (Pet. Exh. H.) That statement did not allege that an officer deliberately threw the flashlight at him, did not say the flashlight struck Medrano in the head, did not identify Caine, and did not state that the flashlight caused any injury. If anything, this statement suggested that Medrano was not struck on the head with a flashlight.

### **C. USE OF FORCE REVIEW PROCESS**

Pursuant to Department Policy, the supervising sergeant – Moody – reviewed the written incident reports from the March 20th incident. (Moody Decl., ¶ 9.) There were two reported uses of force: taser deployments and a canine deployment. (Moody Decl., ¶ 9-10; Resp. Exh. 1, Caine TR at pp. 54:24-56:8; Resp. Exhs. 2-5.) No report mentions Caine throwing anything, using force, or striking Medrano, and Caine submitted no such report himself. (Ibid.)

As part of his review, Moody reviewed incident reports and those portions of BWC footage he believed captured the reported or known uses of force, then routed the materials through the chain of command. (Moody Decl., ¶¶ 9-11.) Then-Lieutenant Bashan also reviewed materials concerning the reported uses of force, and their review did not concern any alleged force by Caine because no such use of force was reported by any responding officer. (Moody Decl. ¶¶ 9-10; Bashan Decl. ¶¶ 4-6, 8.) Moody was at the scene, but he did not see Caine toss the flashlight; his attention was on the suspect and the canine team. (Moody Decl., ¶¶ 3, 5.)

On April 17, 2023, Sergeant Enrik Melgoza emailed Use-of-Force Review (“UOF”) Board members a March 2023 UOF summary and a link to a video for each reported use of force. (Resp. Exh. 1, Caine TR at pp. 59:1-62:5; Resp. Exh. 3, Melgoza E-Mail.) The Board materials did not report Caine’s flashlight throw, Medrano’s statements to Moody or Mallari, Hoffman’s flashlight summary, or Medrano’s “ow.” (Resp. Exh. 1, Caine TR at pp. 59:1-62:5; Resp. Exh. 4 UOF Review Board Summary for March 2023.) The Board met on April 19, 2023, and reviewed materials concerning the reported uses of force. (Resp. Exh. 1, Caine TR at pp. 59:1-62:5.) Lieutenant Ernest Loucas prepared a memorandum regarding the Board’s findings; it contains no mention of a flashlight or Caine. (Ibid.; Resp. Exh 5. April 19, 2023, UOF Meeting Notes).

Caine himself was a UOF Review Board member in 2023. He confirmed that the reported uses of force reviewed by the Board for the Medrano incident were the canine apprehension and taser deployment, not any alleged flashlight use. (Id. at pp. 54:24-56:8.) He received and reviewed the Board materials, yet nothing he saw caused him to question whether his flashlight struck Medrano, and no Board

member mentioned a flashlight strike. (Id. at 56:23-57:13).

#### **D. OCTOBER 2023 COMPLAINT AND INVESTIGATION**

On October 12, 2023, Medrano's attorney, Rachel Lorber, filed a complaint on Medrano's behalf regarding his apprehension and the use of the canine. The complaint did not mention Caine's conduct, did not reference a flashlight, and did not allege that anyone struck Medrano in the head. (Resp. Ex. 2 [October 12, 2023, CPRC complaint].) Caine admits that Lorber's complaint contains no mention of a head injury, no mention of a flashlight, and no mention of him. (Resp. Exh. 1, Caine TR at pp. 107:8-109:2.) Caine also admitted he did not know when the Department first learned that Medrano or his attorney was making an official complaint about being struck in the head with a flashlight during his apprehension. (Ibid.)

On January 31, 2024, Lieutenant England interviewed Medrano. During that interview, Medrano told Lieutenant England that he was awakened by an officer hitting him with something, that he believed it was the officer who was standing on the steps next to his head, and that he suffered a bump to the head as a result. (Pet. Exh. B, p. 10.) Lieutenant England reviewed the body-worn camera footage with the benefit of Medrano's specific allegation and was able to piece together the sequence of events: Caine adjusting his rifle sling, manipulating an object, raising his hand in a throwing motion, and Medrano's reaction. (England Decl. ¶ 5.)

Lieutenant England also interviewed Caine and together they reviewed Caine's body-worn camera video. (Pet. Exh. B, pp. 20-25.) Caine explained his tactical reasoning for throwing the flashlight and maintained that he believed it landed on the ground near Medrano and did not strike him. (Id. at p. 22.) Caine testified that he did not report the flashlight throw to a supervisor or prepare a report because he did not believe it actually hit Medrano – a position that he maintains to this date. (Id. at p. 24; Resp. Exh. 1, Caine TR at pp. 54:24-55:3.)

Lieutenant England determined that “although Sergeant Caine was adamant he did not strike Medrano, the evidence suggests Sergeant Caine did in fact strike Medrano with his flashlight.” (Pet. Ex. B, pp. 38-39.) England bases his conclusion on Medrano's scream immediately after Caine threw the flashlight; Medrano's statements to Sergeant Moody, Officer Mallari, and Officer Hoffman; and the photographic evidence of injury to Medrano's head. (Ibid.) Although the strike was not obvious to Caine – who continues to deny it happened at all – or any of the many other officer on scene – Caine testified that England's statement above forms the foundation for his Petition. (Resp. Exh. 1, Caine TR at pp. 118:18-119:12; 143:4-19.)

#### **E. THE LETTER OF REPRIMAND AND GRIEVANCE**

On October 8, 2024, Chief of Police Bisa French issued a Letter of Reprimand to then Sergeant Caine. The Letter found that Caine threw his flashlight while attempting to locate Medrano, the flashlight struck Medrano causing an audible reaction and visible injury, and Caine failed to document and report his use of the flashlight. (Pet. Exh. A.) The Letter acknowledged that Caine may not have intended to use the flashlight as a blunt-force object but that the injury sustained by Medrano and his audible reaction were evidence of it. (Ibid.)

Then-Assistant Chief Tim Simmons served Caine with the Letter of Reprimand in October 2024. (Verified Petition for Writ of Mandate (“Petition”), at ¶¶ 6, 20.) In the Petition, verified under penalty of perjury, Caine identifies the Letter of Reprimand as being served on October 10, 2024. Although his later moving papers refer to service on October 15, 2024, the service-date distinction is immaterial as

discipline was served within one year of January 31, 2024, when England learned of Medrano's allegations involving the flashlight.

Caine appealed the reprimand as a grievance, arguing in part that the discipline violated the one-year statute of limitations under Government Code section 3304(d)(1). City Manager Shasa Curl denied the grievance on December 10, 2024. (Petition at ¶ 22.)

### **LEGAL STANDARD OF REVIEW**

Under Code of Civil Procedure section 1085 ("traditional mandamus"), writ of mandate will issue to compel the performance of an act that is enjoined by law as duty resulting from office. (Civ. Proc. Code, 1085(a).) Mandate is available only if there is no other, adequate remedy at law. (*300 DeHaro Street Investors v. Department of Housing Community Development* (2008) 161 Cal.App.4th 1240, 1254.) To obtain relief, petitioner must demonstrate (1) no 'plain, speedy, and adequate' alternative remedy exists; (2) clear, present ministerial duty on the part of the respondent; and (3) clear, present and beneficial right in the petitioner to the performance of that duty. (*Kern County Hosp. Auth. v. Department of Corrections Rehabilitation* (2023) 91 Cal.App.5th 1313, 1325.) "A ministerial duty is an obligation to perform a specific act in a manner prescribed by law whenever a given state of facts exists, without regard to any personal judgment as to the propriety of the act." (*People v. Picklesimer* (2010) 48 Cal.4th 330, 340.)

Section 1094.5 of the Code of Civil Procedure governs judicial review by administrative mandate of any final decision or order rendered by an administrative agency. A trial court's review of an adjudicatory administrative decision is subject to two possible standards of review depending upon the nature of the right involved. (Code Civ. Proc., § 1094.5, subd. (c).) If the administrative decision substantially affects a fundamental vested right, the trial court must exercise its independent judgment on the evidence. (*Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11 Cal.3d 28, 32; *Bixby v. Pierno* (1971) 4 Cal.3d 130, 143.) The trial court must not only examine the administrative record for errors of law but must also conduct an independent review of the entire record to determine whether the weight of the evidence supports the administrative findings. (*Bixby v. Pierno*, *supra*, at p. 143.)

A written letter of reprimand against a police officer is considered a punitive and disciplinary action under the Public Safety Officers Procedural Bill of Rights Act (POBR). (Gov. Code, § 3303.) "Under these circumstances, we conclude that the administrative decision sustaining the charges of misconduct against [the police officer] and upholding the official reprimand substantially affected [the police officer]'s fundamental vested right in his employment. As a result, the trial court was required to exercise its independent judgment on the evidence." (*Wences v. City of Los Angeles* (2009) 177 Cal.App.4th 305, 318.)

### **APPLICABLE LAW**

The one-year statute of limitations begins to run when a person authorized to initiate an investigation discovered or should have discovered in the exercise of reasonable diligence, the act, omission, or misconduct in question. (*Pedro v. City of Los Angeles* (2014) 229 Cal.App.4th 87, 106 (*Pedro*).) The one-year limitations period begins when a supervisor has a duty to investigate, not when a formal investigation must be opened. (*Jackson v. City of Los Angeles* (2003) 111 Cal.App.4th 899, 911 [under chief of police order, 3304(d)'s one-year limitations period begins when supervisor (sergeant I or detective II or higher) has a duty to investigate].) "Not only completion of the investigation, but also the requisite notification to the officer, must be accomplished within a year of discovery of the



misconduct.” (*Mays v. Los Angeles* (2008) 43 Cal.4th 313, 321-22.)

Section 3304(d)(1) requires speedy adjudication of misconduct that could result in discipline. Officers must be notified of proposed disciplinary action within one year of the date the employing department discovers the misconduct, absent certain exceptions not relevant here. (*Breslin v. City and County of San Francisco* (2007) 146 Cal.App.4th 1064, 174-175.)

### **ANALYSIS**

The dispute in this writ proceeding is whether Respondent served Petitioner his Letter of Reprimand within the one-year statute of limitations set out by Government Code section 3304(d).

Respondent argues from the position that it was not aware of Suspect Medrano’s complaint of being hit in the head by a flashlight until his January 31, 2024, interview with Lieutenant England. In the context of the applicable statute of limitations, Respondent’s argument is that the January 31, 2024, interview of Medrano conducted by Lieutenant England was the first time a person authorized to initiate an investigation discovered or should have discovered through reasonable diligence the misconduct in question.

### **Lieutenant’s England’s Determinations Form the Basis for the Letter of Reprimand**

Lieutenant England determined that “although Sergeant Caine was adamant, he did not strike Medrano, the evidence clearly shows Sergeant Caine did in fact strike Medrano with his flashlight.” (Pet. Ex. B, pp. 38-39.) Lieutenant England based this conclusion on Medrano’s scream immediately after Caine threw the flashlight; Medrano’s statements to Sergeant Moody, Officer Mallari, and Officer Hoffman; and the photographic evidence of injury to Medrano’s head. (Id.) Although the strike was not obvious to Caine – who continues to deny it happened at all – or any of the many other officer on scene – Caine testified that England’s statement above forms the foundation for his Petition. (Resp. Exh. 1, Caine TR at pp. 118:18-119:12; 143:4-19).

### **April 19, 2023, Use of Force Review**

On April 17, 2023, Sergeant Enrik Melgoza emailed the members of the Use of Force Review Board, including Petitioner Caine, Sergeant Moody, Captain Matthew Stonebraker, Lieutenant Joseph England, Lieutenant Ernest Loucas, and five other members of the Use of Force Review Board a summary of the uses of force occurring during March 2023 and a link to the database for review of video from each use of force.

The Board met on April 19, 2023, and reviewed materials concerning the reported uses of force. (Resp. Exh. 1, Caine TR at pp. 59:1-62:5.) It is undisputed that Lieutenant Joseph England is a person who holds a supervisory role and is authorized to initiate an investigation that could lead to discipline under the Government Code since he was person who opened the investigation about the flashlight use of force on Petitioner as a result of the interview he held with Medrano on January 31, 2024.

### **Petitioner’s Ex G Mallari Body Worn Camera (BWC) Footage Excerpt 2**

Officer Mallari’s BWC Excerpt 2 is a 20 second clip of an interview conducted by Officer Mallari on March 20, 2026, at approximately 23:26. Officer Mallari asked Medrano why someone had identified him as a driver of a stolen vehicle and if the reason why he didn’t respond to officers’ commands while he was in the bushes was because he was asleep. Towards the end of the interview Medrano states, “... I woke up with a flashlight hitting me and then you popped up.”

### **Petitioner's Ex D Mallari Body Worn Camera (BWC) Footage Excerpt 1**

Officer Mallari's BWC Excerpt 1 is a 62 second clip of the apprehension of suspect Medrano on March 20, 2026, at approximately 22:45. At around 45 seconds there is an audible thump followed by Medrano yelling "Ow" and following up by asking, "What did you do that for, I was just sleeping here."

### **Lieutenant England's Determinations are based on Evidence Available at the April 19, 2023, Use of Force Review**

The Court understands Respondent's position is that it did not discover Caine's act of throwing the flashlight until Lieutenant England interviewed Medrano on January 31, 2024. And that the January 31, 2024, interview was first time anyone brought to the attention of a Department supervisor the allegation that someone struck Medrano with an object. While these statements may be true, this is not the standard.

The reasonable diligence standard under section 3304(d)(1) parallels civil discovery. It asks when an authorized person knew or should have known facts giving reason to suspect wrongdoing, causation, and harm. (*Pedro*, supra, 229 Cal.App.4th 87 at 102.)

It is the Court's understanding that Exhibits D and G were available for review for the April 19, 2023, per Sergeant Melgoza's April 17, 2023, email. (Resp. Exh. 3.) Considering the footage of Medrano clearly stating that he woke up to a flashlight hitting him during his interview at the hospital, and that during the footage of Medrano's apprehension he audibly yells out "Ow" after an audible thump multiple seconds before he is contacted by the K9 officer put the Use of Force Review Board on inquiry notice of misconduct with a flashlight hitting Medrano's head had occurred at the April 19, 2023, Use of Force Review, triggering an authorized person's duty to investigate.

Thus, the one-year statute of limitation as set by Government Code section 3304(d) was triggered and began at the April 19, 2023, Use of Force Review and ran on April 19, 2024. In the Petition, verified under penalty of perjury, Petitioner Caine identifies the Letter of Reprimand as being served on October 10, 2024, although his later moving papers refer to service on October 15, 2024, the service-date distinction is immaterial, because both dates are well beyond the statute of limitations deadline of April 19, 2024.

### **CONCLUSION**

For the reasons analyzed above, **Petitioner's Writ of Mandate is granted and the Court orders Respondent to rescind the October 2024 Letter of Reprimand because it is barred by the one-year statute of limitations set out by Government Code section 3304(d)(1).** Petitioner is ordered to prepare the order.

### **RESPONDENT'S OBJECTIONS TO EVIDENCE**

- 1) Overruled.
- 2) Overruled.

### **PETITIONER'S OBJECTIONS TO EVIDENCE**

**Bashan Declaration**

1) Overruled.

2) Overruled.

3) Overruled.

**English Declaration**

1) Overruled.

2) Overruled.

**Moody Declaration**

1) Overruled.

2) Overruled.

3) Overruled.

4) Overruled.